

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

July 2, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	26-01561877 <i>Acrisure, LLC vs. Thomas</i>	Demurrer to Complaint Defendant Patrick Thomas’ demurrer to plaintiffs Acrisure, LLC, Acrisure of California Partner Group, LLC, and RSI Insurance Brokers, Inc.’s Complaint is SUSTAINED with 20 days leave to amend. Third cause of action for intentional interference with prospective economic advantage “An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) the defendant’s intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant’s acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (<i>SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.</i> (2007) 148 Cal.App.4th 663, 672 fn. 7 [cleaned up].) Thomas demurs on the ground Plaintiffs do not plead independently wrongful conduct as Plaintiffs allege only that Thomas merely induced at-will employees to leave Acrisure. Plaintiffs allege, however, Thomas did so while still serving as Acrisure’s senior employee and supervisor, which required him to act in Acrisure’s best interests, faithfully discharge his responsibilities, and to refrain from engaging in conduct adverse to the company’s business. (Compl. ¶ 23.) The Court finds this is sufficient to allege independently wrongful conduct. Thomas further alleges Plaintiffs’ cause of action fails as Thomas “was not a stranger to the employment relationships at issue and therefore cannot be held liable under the interference tort.” (Dem. at 4:15-17.) “‘[C]orporate agents and employees acting for or on behalf of the corporation cannot be held liable for inducing a breach of the corporation’s contract,’ unless the corporate agent was acting for his own benefit, rather than the corporation’s benefit.” (<i>Mewawalla v. Middleman</i> (N.D. Cal. 2022) 601 F.Supp.3d 574, 610 [citing various California cases].) Plaintiffs sufficiently allege Thomas acted “for personal financial gain and to advance his future employer’s competitive interests at Acrisure’s expense.” (Compl. ¶ 61.)

		This cause of action also requires, however, “<i>actual</i> disruption of the relationship.” (<i>SC Manufactured Homes, Inc., supra</i>, 148 Cal.App.4th at p. 672 fn. 7 [emphasis added].) Plaintiffs allege Thomas asked one employee whether he would be interested in an opportunity with a competitor and that the employee was subsequently contacted by the competitor. (Compl. ¶ 32.) Plaintiffs further allege another employee received unsolicited calls from a competitor and responded he was not interested in joining. (Compl. ¶ 33.) Plaintiffs allege Thomas then contacted that employee and informed him Thomas was working with the competitor, had been told by the competitor about the employee’s response, and encouraged the employee to consider the competitor’s offer. (Compl. ¶ 33.) Plaintiffs allege the employee then received an offer letter from the competitor. (Compl. ¶ 34.) Finally, Plaintiffs allege “Thomas solicited additional Acrisure employees to join him at the competitor.” (Compl. ¶ 35.) While Plaintiffs include a single allegation they have “suffered substantial and irreparable injury, including the loss of business, employees, and damage to its goodwill and reputation” (Compl. ¶ 39), the alleged loss of employees is unsupported by any factual allegations. Plaintiffs do not allege either the specifically referenced employees or any other employees actually left Acrisure for a competitor due to Thomas’ conduct. The Court SUSTAINS Thomas’ demurrer to the third cause of action in Plaintiffs’ complaint with 20 days leave to amend.
2	25-01453685 <i>Adams vs. Colliers International Group, Inc.</i>	1) Motion to Compel Production 2) Motion to Compel Production Plaintiffs Irene Adams and West Palmyra Ltd. moves to compel Defendant Colliers International Group Inc. (“CIGI”) to serve further responses to Plaintiffs’ Requests for Production of Documents, Set One, and to produce all responsive, non-privileged documents. On 5-21-26, the court continued the hearing on the Motion and ordered the parties to further meet and confer. (ROA 452.) On 6-18-26, parties filed a Joint Statement which shows the parties have met and conferred and CIGI has agreed to produce all non-privileged documents responsive to the Request for Production. To date, CIGI has produced 18,613 documents. CIGI states that it will be producing additional responsive documents on 6-22-26 and will serve supplemental responses to the Request including identifying bates numbers of documents by category by 6-24-26. It appears the parties have successfully resolved the issues raised in the Motion. The court asks that the parties come prepared to discuss the status of the service of supplemental responses and production of supplemental documents and any remaining issues not resolved by the meet and confer. Plaintiffs to give notice.

		MOTION NO. 2: Plaintiffs Irene Adams and West Palmyra Ltd.’s motion to compel defendant Millrock Investment Fund 1, LLC (“Millrock”) to serve verified, code-compliant further responses, without objection, to Plaintiffs’ Requests for Production of Documents, Set One, and to produce all responsive, non-privileged documents and for monetary sanctions is CONTINUED to _____. The rule requiring a good faith effort to meet and confer about discovery disputes “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.) “The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice.” (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Millrock contends that Plaintiffs failed to sufficiently meet and confer prior to filing the Motion. On 12-15-25, Plaintiffs counsel sent a meet and confer letter to Millrock’s counsel. (Dardashti Decl., ¶ 5, Ex. C.) On 12-22-25, Millrock responded to the letter and explained why Millrock was having difficulty understanding Plaintiffs’ requests and offered to further meet and confer regarding the Requests. (Dardashti Decl., ¶ 6, Ex. D.) Millrock states that in their Motion, Plaintiffs characterize their Requests far more narrowly than the versions they propounded on Millrock and that it is likely that if Plaintiffs met and conferred with Millrock and narrowed their Requests, as they have attempted to do in their Motion, many of the disputes identified by Plaintiffs could potentially be resolved. (Opp., 8:16-19.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiffs to give notice.
3	24-01393857 Bank Of America, N.A. vs. Chadha	Motion to Vacate Plaintiff Bank of America, N.A.’s Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation of the Parties is DENIED without prejudice.

		The Court's 6/18/26 Minute Order stated in part the following: "... Plaintiff has sufficiently established Defendant's breach of the settlement agreement and the Court intends to enter judgment on the parties' settlement pursuant to Code of Civil Procedure section 664.6. [¶] However, the amount of judgment to be entered is unclear to the Court, since it appears Defendant resumed payments after allegedly ceasing payments in August 2026, and Plaintiff has not submitted a reply brief. [¶] Plaintiff's counsel shall file and serve a reply declaration, not to exceed five pages, no later than 6/26/26, stating what the total amount to be entered for judgment is as of the present date, and explaining the basis for their calculation. If the reply declaration is not timely filed, the motion will be denied without prejudice." As of 6/29/26, Plaintiff's counsel has not submitted the required reply declaration stating the updated amount of judgment to be entered. Therefore, the motion is denied without prejudice. The parties are encouraged to informally resolve this issue if possible. However, Plaintiff may file a renewed motion with an updated judgment amount if necessary.
4	24-01395117 <i>Leming vs. Huntington Landmark Senior Adult Community Association</i>	Motion to Consolidate Plaintiff Carole Leming's Motion to Consolidate is DENIED without prejudice. Plaintiff moves to consolidate two matters: (1) <i>Carole Leming vs. Huntington Landmark Senior Adult Community Association</i>, OSC Case No. 30-2024-01395117-CU-PO CJC ("<i>Huntington Landmark</i> case"); and (2) <i>Carole Leming vs. PPM Construction</i>, , OSC Case No. 30-2023-01305363-CU-PA-CJC ("<i>PPM</i> case"). Both cases arise out of the same incident and policies. California Rules of Court, rule 3.350(a)(1), provides: "A notice of motion to consolidate must: [¶] (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; [¶] (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and [¶] (C) Be filed in each case sought to be consolidated." California Rules of Court, rule 3.350(a)(2), provides: "The motion to consolidate: [¶] (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; [¶] (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and [¶] (C) Must have a proof of service filed as part of the motion." The motion is procedurally deficient. The notice, memorandum, declaration, and other supporting papers were filed only in the <i>Huntington Landmark</i> case, the highest number case. They should have been filed in the <i>PPM</i> case, the lowest number case, with only the notice being filed in the <i>Huntington Landmark</i> case. While the notice's caption

		identifies the <i>PPM</i> case, the court’s electronic filing header shows it was actually filed in the <i>Huntington Landmark</i> case. These errors violate rule 3.350(a)(1) & (2). In addition, the attached proof of service does not include a service list. Therefore, there is no evidence the motion was served on all parties in both cases in violation of rule 3.350(a)(2).
5	25-01531711 <i>Nguyen vs. Toyota Motor Sales, U.S.A., INC.</i>	Demurrer to Complaint Defendant Toyota Motor Sales, U.S.A., Inc.’s Demurrer to the Complaint is CONTINUED to July 9, 2026 at 10:00 am in Department C33. A demurrer and motion to strike must be heard at the same time. (Cal. Rules of Court, rule 3.1322(b).) The concurrently filed Motion to Strike is set to be heard on July 9, 2026. Thus, the hearing on the demurrer is continued to the same date.
6	24-01437419 <i>Saeed vs. City of Newport Beach</i>	Motion for Leave to File Cross Complaint Defendant Environmental Construction, Inc.’s (“Environmental”) unopposed motion for leave to file a cross-complaint against Tot Lot Pros and ROES 1-50 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. §428.10, subd. (b).) “Cross complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. (Code Civ. Proc., § 428.50(c).) The proposed cross-complaint asserts causes of action for indemnity, contribution, declaratory relief and breach of contract against Tot Lot Pros. The proposed cross-complaint is therefore permissive. The claims are related to the incident alleged by Plaintiff in his Complaint. Plaintiff alleges that on October 29, 2023, while he was walking on a playground ramp located within Grant Howald Part in the City of Newport Beach, he slipped and fell, allegedly due to accumulated leaves and loose sand from an adjacent sand pit. In connection with the Grant Howald Park

		improvement project, Environmental entered into a subcontract dated August 4, 2020, with Tot Lot Pros for the installation of the playground equipment, surfacing, and related components, including work performed in and around the ramp area where Plaintiff alleges he fell. Further, Environmental contends that under Section 11 of the subcontract, Tot Lot Pros is required to indemnify, defend, and hold harmless Environmental and the City of Newport Beach from all claims, liabilities, damages, and expenses arising out of or connected with its work. Therefore, the court finds that interests of justice weigh in favor of granting the motion for leave to file a cross-complaint against Tot Lot Pros. Environmental is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
7	24-01406771 <i>Simpson vs. FCA US, LLC</i>	1) Motion to Compel Answers to Special Interrogatories 2) Motion to Compel Production 3) Motion to Deem Facts Admitted The following motions are DENIED: 1. Plaintiffs' Motion to Compel Production (ROA 45) 2. Plaintiffs' Motion to Deem Answers Admitted (ROA 47) 3. Plaintiffs' Motion to Compel Answers to SPROGs (ROA 48) It is undisputed that Defendant served untimely but substantive responses after the motions were served, rendering the request to compel responses/deem answers admitted moot. However, Plaintiffs maintain their request for sanctions. Defendant asserts that sanctions are unwarranted because counsel for the parties had already reached an agreement in which Defendant would not serve responses to pending discovery in litigation between the two firms unless responses were specifically requested by Plaintiff's counsel. (Hugret Decl., ¶¶ 3-5.) Defendant's counsel declares Plaintiff sent a letter by email on 12/31/25 with a 7-day deadline to respond to the subject discovery (which had been served in August 2024), then filed the present motions on 1/12/26. Defendant promptly served responses on 2/20/26. In the initial motions, Plaintiffs assert the parties' agreement only extended time to respond by 30 days. However, Plaintiffs have not filed a reply brief responding to Defendant's arguments in opposition. Moreover, Plaintiffs should have engaged in additional meet and confer attempts, such as a phone call to Defendant's counsel, before filing the motions. Defendant has shown it made reasonable efforts to comply with its discovery obligations in the context of the parties' agreement. Therefore, the request for sanctions is denied.

8	24-01417629 <i>Sullivan vs. Kazerooni</i>	Motion to Dismiss Defendant Sima Kazerooni’s unopposed Motion to Dismiss is DENIED. Defendant moves to dismiss this action pursuant to Business Code section 6204, which provides that if no party seeks a trial de novo within thirty days after service of the arbitration award, the award becomes final and binding. (See Bus. & Prof. Code, § 6204, subd. (a).) While Defendant correctly argues that the arbitration award is binding and the parties are precluded from relitigating the fee dispute, Defendant’s motion is procedurally improper. First, Business and Professions Code section 6204 does not provide for dismissal of the action after the arbitration award has been issued by the arbitrator or confirmed by the court. Second, “dismissal is available only after the court determines that such person [seeking dismissal] was not bound by the arbitration award and was not a party to the arbitration.” (<i>Horn v. Gurewitz</i> (1968) 261 Cal.App.2d 255, 260; Code Civ. Proc., §§ 1286, 1287.2.) Defendant does not contend that she is such a person, nor could she since she is the party who filed the Petition to Arbitrate with the OCBA on 10/16/24. (See ROA 205 [9/11/25 Minute Order].) Third, because the court confirmed the arbitration award on 4/9/26 (see ROA 174), entry of judgment in conformity with the arbitration award is required. (Code Civ. Proc., § 1287.4.) Entering an order of dismissal is not statutorily authorized. Therefore, the motion is DENIED.
9	25-01494464 <i>Torres vs. Sokol</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production 3) Motion to Compel Response to Requests for Admissions Form Interrogatories Plaintiff Maria Torres’s Motion to Compel Further Responses to Form Interrogatories is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., § 2030.300(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied. Requests for Production

	Plaintiff Maria Torres’s Motion to Compel Further Responses to Requests for Production is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied. Requests for Admission Plaintiff Maria Torres’s Motion to Compel Further Responses to Requests for Production is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc., § 2033.290(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied.
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